

STEVENS, J., concurring in judgment

action at issue here, actually has an adverse impact on a particular racial group. See, e. g., *Personnel Administrator of Mass. v. Feeney*, 442 U. S. 256, 279 (1979) (holding that the Equal Protection Clause is implicated only when “a state legislatur[e] selected or reaffirmed a particular course of action at least in part ‘because of,’ not merely ‘in spite of,’ its adverse effects upon an identifiable group”); *Washington v. Davis*, 426 U. S. 229 (1976); *Hernandez v. New York*, 500 U. S. 352, 375 (1991) (O’CONNOR, J., concurring in judgment) (“No matter how closely tied or significantly correlated to race the explanation for [a governmental action] may be, the [action] does not implicate the Equal Protection Clause unless it is based on race”).

Accordingly, appellees’ evidence may include nothing more than (i) a bizarre shape, which is equally consistent with either political or racial motivation, (ii) registration data, which are virtually irrelevant when actual voting results were available and which point in a different direction, and (iii) knowledge of the racial composition of the district. Because we do not have before us the question whether the District Court erred in denying the State’s motion for summary judgment, I need not decide whether that circumstantial evidence even raises an inference of improper motive. It is sufficient at this stage of the proceedings to join in the Court’s judgment of reversal, which I do.